Harris County District Court

Cause No. 2025-CV-0040

Brandon Knight, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	10-20-25
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies the allegations and requests that Plaintiff be required to prove the charges and allegations by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, Plaintiff's own negligence proximately caused or contributed to the occurrence. Plaintiff failed to keep a proper lookout, failed to confirm that the adjacent lane was clear before moving, and failed to yield the right of way as required by Texas Transportation Code Chapter 545. Under Chapter 33 of the Texas Civil Practice and Remedies Code, any recovery must be reduced by Plaintiff's percentage of responsibility, and bars recovery if that percentage exceeds fifty percent.

Second, the injuries and damages claimed were caused in whole or in part by the acts or omissions of persons or entities other than Defendant, and Defendant requests submission of responsible third parties under Section 33.004.

Third, Defendant asserts its right to a credit or offset for any settlement amounts paid to Plaintiff by any other person or entity for the same damages, and asserts that Plaintiff's recoverable medical expenses are limited to amounts actually paid or incurred under Section 41.0105.